

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ANTHONY HUTCHINSON,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER PHILLIP ROSSOMANDO, Tax No.
954299, POLICE OFFICER RONALD SANCHEZ Tax
No. 954315, POLICE OFFICER GARY WILLIAMS, Tax
No. 952344, POLICE OFFICER JAMES RESER, Tax No.
951126, LIEUTENANT MICHAEL GOODCHILD, Tax
No. 936686, CAPTAIN ROBERT OHARE, Tax No.
916960, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 17, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO:

POLICE OFFICER PHILLIP ROSSOMANDO, Tax No. 954299, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

POLICE OFFICER RONALD SANCHEZ, Tax No. 954315, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

POLICE OFFICER GARY WILLIAMS, Tax No. 952344, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

POLICE OFFICER JAMES RESER, Tax No. 951126, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

LIEUTENANT MICHAEL GOODCHILD, Tax No. 936686, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

CAPTAIN ROBERT OHARE, Tax No. 916960, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
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ANTHONY HUTCHINSON,

Plaintiff,

-against-

POLICE OFFICER PHILLIP ROSSOMANDO, Tax No.
954299, POLICE OFFICER RONALD SANCHEZ, Tax
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No. 936686, CAPTAIN ROBERT OHARE, Tax No.
916960, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ANTHONY HUTCHINSON, by his attorneys, Jacobs & Hazan, LLP, as and for
his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On April 17, 2015, at approximately 10:00 p.m., plaintiff Anthony Hutchinson, while lawfully present in front of 902 Williams Avenue, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was subjected to the use of excessive force by the defendant police officers when they pushed plaintiff to the ground and punched him in the face and groin numerous times, causing plaintiff to suffer severe physical injuries. The defendant officers falsely informed the District Attorney's Office that plaintiff attempted to assault them in order to justify why plaintiff was injured by the police officers. Plaintiff was subjected to malicious abuse of process, malicious prosecution and denied the right to due process and a fair trial. All criminal charges brought against plaintiff were dismissed and terminated in plaintiff's favor on June 23, 2016. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ANTHONY HUTCHINSON is a resident of the state of New York.

3. POLICE OFFICER PHILLIP ROSSOMANDO, Tax No. 954299, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER PHILLIP ROSSOMANDO, Tax No. 954299, is and was at all times relevant herein, assigned to PSA 1.

5. POLICE OFFICER PHILLIP ROSSOMANDO, Tax No. 954299, is being sued in his individual and official capacity.

6. POLICE OFFICER RONALD SANCHEZ, Tax No. 954315, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER RONALD SANCHEZ, Tax No. 954315, is and was at all times relevant herein, assigned to PSA 1.

8. POLICE OFFICER RONALD SANCHEZ, Tax No. 954315, is being sued in his individual and official capacity.

9. POLICE OFFICER GARY WILLIAMS, Tax No. 952344, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER GARY WILLIAMS, Tax No. 952344, is and was at all times relevant herein, assigned to PSA 1.

11. POLICE OFFICER GARY WILLIAMS, Tax No. 952344, is being sued in his individual and official capacity.

12. POLICE OFFICER JAMES RESER, Tax No. 951126, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER JAMES RESER, Tax No. 951126, is and was at all times relevant herein, assigned to PSA 1.

14. POLICE OFFICER JAMES RESER, Tax No. 951126, is being sued in his individual and official capacity.

15. LIEUTENANT MICHAEL GOODCHILD, Tax No. 936686, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. LIEUTENANT MICHAEL GOODCHILD, Tax No. 936686, is and was at all times relevant herein, assigned to PSA 1.

17. LIEUTENANT MICHAEL GOODCHILD, Tax No. 936686, is being sued in his individual and official capacity.

18. CAPTAIN ROBERT OHARE, Tax No. 916960, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. CAPTAIN ROBERT OHARE, Tax No. 916960 is and was at all times relevant herein, assigned to PSA 1.

20. CAPTAIN ROBERT OHARE, Tax No. 916960, is being sued in his individual and official capacity.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On April 17, 2015, at approximately 10:00 p.m., plaintiff was lawfully present in the vicinity of 902 Williams Avenue, Brooklyn, New York, when the defendant police officers

unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

28. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

29. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

30. Suddenly, without provocation or legal justification, the defendant police officers pushed plaintiff to the ground and unlawfully handcuffed plaintiff without legal justification or probable cause.

31. While plaintiff was handcuffed on the ground, the defendant officers pushed their knees into his back and punched plaintiff in the groin area approximately 10 times, causing severe pain.

32. Defendant police officer Gary Williams punched plaintiff in the face and mouth, knocking plaintiff's tooth out of his mouth and causing profuse bleeding and pain.

33. At no time relevant herein did plaintiff resist arrest or act in a physically threatening manner, nor did the defendant officers have any objective factual basis to believe plaintiff was a physical threat to them.

34. At no point in time did plaintiff resist arrest in any way.

35. Thereafter, plaintiff was unlawfully handcuffed and unlawfully arrested, and was transported by the defendant police officers to PSA 1 against his will.

36. Plaintiff asked for medical attention because his tooth was knocked out, he was bleeding profusely from his face, and suffering severe pain in his mouth and back.

37. EMS responded to PSA 1 and determined that plaintiff's injuries required treatment at a hospital.

38. Plaintiff was transported via ambulance to Brookdale Hospital.

39. The hospital staff examined plaintiff's injuries caused by the defendant police officers and diagnosed plaintiff with a lip abrasion and broken tooth. Plaintiff was prescribed pain medication and instructed to follow up with his primary care physician for further treatment of his injuries.

40. Defendants' use of excessive force against plaintiff was the direct and proximate cause of the physical injuries to plaintiff's face, tooth, and back.

41. On April 18th, 2015 at approximately 2:00 a.m. plaintiff was transported back to PSA 1 where he was photographed, fingerprinted and then placed in a holding cell by the defendants.

42. After several hours in custody, plaintiff was transported from PSA 1 to Brooklyn Central Booking and placed in a holding cell.

43. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information which allegedly led them to believe that plaintiff committed a crime.

44. To avoid being disciplined for injuring plaintiff, the defendant officers needed to provide a valid explanation for how plaintiff was physically injured while in their custody. Therefore, for the purpose of justifying the force used by the officers against plaintiff, the officers falsely alleged that plaintiff attempted to assault them, fabricating an explanation for plaintiff's injuries. The defendant officers falsely arrested plaintiff in order to achieve their collateral objectives of avoiding discipline for injuring plaintiff and justifying how plaintiff was injured by the police officers.

45. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

46. On April 18, 2015, at approximately 10:00 p.m., after being unlawfully detained for approximately 24 hours, plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit, and was released on his own recognizance.

47. Plaintiff was unlawfully charged with Attempted Assault in the Second Degree, Attempted Assault in the Third Degree, Attempted Criminal Mischief, Attempted Possession of a Deadly Instrument in the Fourth Degree, Harassment, and Public Consumption of Alcohol, without probable cause or legal justification.

48. Thereafter, on April 20, 2015, plaintiff went to Downstate Medical Center for additional medical treatment for his injuries caused by the defendant police officers.

49. On June 23, 2016, Judge Dena Douglas held that the defendant police officers had no probable cause to approach and detain plaintiff on April 17, 2015.

50. Plaintiff appeared in Kings County Criminal Court on at least eleven occasions before all charges were dismissed by motion of the Kings County District Attorney's Office on June 23, 2016.

51. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, malicious prosecution,

excessive force, denial of due process and the right to a fair trial, and abuse of process against plaintiff.

52. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, malicious prosecution, abuse of process, and excessive force of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to malicious abuse of process, and maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

64. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

71. Defendants lacked probable cause to search plaintiff.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

78. Defendants commenced and continued a criminal proceeding against plaintiff.

79. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

80. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

81. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The use of excessive force by defendants punching plaintiff in the face, pushing plaintiff to the ground, punching plaintiff in the groin, and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

87. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein

90. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

91. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

92. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

93. In withholding/creating false evidence against plaintiff Anthony Hutchinson, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

94. As a result of the foregoing, plaintiff Anthony Hutchinson, sustained, *inter alia*, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

100. Defendants failed to intervene to prevent the unlawful conduct described herein.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

102. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

106. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Anthony Hutchinson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 17, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER PHILLIP ROSSOMANDO, Tax No. 954299, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224
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LIEUTENANT MICHAEL GOODCHILD, Tax No. 936686, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224
CAPTAIN ROBERT OHARE, Tax No. 916960, PSA 1, 2860 W 23rd St, Brooklyn, NY 11224

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 17, 2018

/s/
STUART E. JACOBS